

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X

DIANE C. DESOUSA AND THOMAS E. DESOUSA,

Index No.:

Plaintiffs,

600371/2021

-against-

RICHARD A. CALVAGNO II AND PATRICK J.
KARCHER,

Defendants.

-----X

330 Old Country Road
Mineola, New York

January 16, 2024
10:50 A.M.

EXAMINATION BEFORE TRIAL of PAUL VALENZANO, a
Nonparty witness herein, taken by Plaintiffs, pursuant
to Subpoena.

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A P P E A R A N C E S :

JOHN N. CUOMO LAW OFFICES

Attorneys for Plaintiffs

11 Fern Drive

Commack, NY 11725

BY: JOSEPH INDUSI, ESQ.

JOHN N. CUOMO, ESQ.

CYE E. ROSS, ESQ.

Attorney for Nonparty witness Paul Valenzano

30 Vesey Street, Suite 1800

New York, NY 10007

S T I P U L A T I O N S

IT IS HEREBY STIPULATED AND AGREED by
and between the attorneys for the respective parties
herein, and in compliance with Rule 221 of the Uniform
Rules for the Trial Courts

THAT the parties recognize the provision of
Rule 3115 subdivisions (b), (c) and/or (d). All
objections made at a deposition shall be noted by the
officer before whom the deposition is taken, and the
answer shall be given and the deposition shall proceed
subject to the objections and to the right of a person
to apply for appropriate relief pursuant to Article 31
of the CPLR.

THAT every objection raised during a
deposition shall be stated succinctly and framed so as
not to suggest an answer to the deponent and, at the
request of the questioning attorney, shall include a
clear statement as to any defect in form or other basis
of error or irregularity. Except to the extent
permitted by CPLR Rule 3115 or by this rule, during the
course of the examination persons in attendance shall
not make statements or comments that interfere with the
questioning

THAT a deponent shall answer all questions at a
deposition, except (i) to preserve a privilege or right

1 of confidentiality, (ii) to enforce a limitation set
2 forth in an order of a court, or (iii) when the question
3 is plainly improper and would, if answered, cause
4 significant prejudice to any person. An attorney shall
5 not direct a deponent not to answer except as provided
6 in CPLR Rule 3115 or this subdivision. Any refusal to
7 answer or direction not to answer shall be accompanied
8 by a succinct and clear statement of the basis
9 therefore. If the deponent does not answer a question,
10 the examining party shall have the right to complete the
11 remainder of the deposition

12 THAT an attorney shall not interrupt the
13 deposition for the purpose of communicating with the
14 deponent unless all parties consent or the communication
15 is made for the purpose of determining whether the
16 question should not be answered on the grounds set forth
17 in section 221.2 of these rules and, in such event, the
18 reason for the communication shall be stated for the
19 record succinctly and clearly.

20 THAT failure to object to any question
21 or to move to strike any testimony at this examination
22 shall not be a bar or waiver to make such objection or
23 motion at the time of the trial of this action, and is
24 hereby reserved; and

25 THAT this examination may be signed and

1 sworn to by the witness examined herein before any
2 Notary Public, but failure to do so or to return the
3 original of the examination to the attorney on whose
4 behalf the examination is taken shall not be deemed a
5 waiver of the rights provided by Rules 3116 and 3117 of
6 the CPLR, and shall be controlled thereby, and

7 THAT certification and filing of the
8 original of this examination are waived; and

9 THAT the questioning attorney shall provide
10 counsel for the witness examined herein with a copy of
11 this examination at no charge.

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1 P A U L V A L E N Z A N O, having been first duly
2 sworn by Rosemarie Tulumello(Ellis), a Notary Public of
3 the State of New York, was examined and testified as
4 follows:

5 EXAMINATION BY

6 MR. INDUSI:

7 Q Please state your name for the record.

8 A Paul Valenzano.

9 Q What is your address?

10 A 41-50 249th Street, Little Neck, New York
11 11363.

12 Q Mr. Valenzano, my name is Joe Indusi. I
13 represent Tom and Diane DeSousa, the
14 plaintiffs in this action. You've been
15 subpoenaed here as a nonparty witness. You're
16 obviously not a party to that lawsuit. I'm
17 going to ask you a bunch of questions, not too
18 long, as you saw from the prior deposition.
19 I just want to go over a few ground rules.

20 Make sure you let me finish each question
21 before you start to answer it and I will do my
22 best to let you finish your answer before I
23 ask the next question. Please keep your
24 responses verbal and not physical. She can
25 only take down what's being said by both me

1 and you. She can't down the head nods or
2 anything like that. Again, she can only
3 write one person at a time, so if you let me
4 finish and then you answer, like I said, I
5 will let you answer so she can get everything
6 down. If you don't understand the question
7 that I ask or there's a caveat or some change,
8 your answer is not as clean as the question
9 proposes, just ask me to rephrase the question
10 or repeat the question. I'm happy to do that.
11 If you need a break at any time, feel free to
12 ask for a break. We just have to answer the
13 question that's out there first, then you can
14 take a break.

15 Do you understand all these?

16 A Yeah.

17 Q Before we start the questions substantively,
18 are you taking any medications today that
19 would impair your ability to testify
20 truthfully here?

21 A No.

22 Q Have you used any alcohol or drugs in the last
23 24 hours?

24 A No. I only have taken a little cough
25 medicine. I'm a little congested.

1 Q Not going to affect your ability to tell the
2 truth?

3 A No, no, no, no.

4 Q No problem.

5 Who are you employed by?

6 A Westbury Jeep.

7 Q What is your job title there?

8 A I do the new car preps.

9 Q How long have you worked there?

10 A About 10, 12 years.

11 Q What did you do before you worked for Westbury
12 Jeep?

13 A Worked for BMW in Oyster Bay.

14 Q Very nice.

15 Have you been in cars most of your career?

16 A Yes.

17 Q Are you a licensed New York State inspector?

18 A Yes.

19 Q Do you know who Richard Calvagno is?

20 A No.

21 Q Do you know who Tom or Diane DeSousa are?

22 A No.

23 Q Are you aware that you're here today in
24 connection with a car that's owned by Rich
25 Calvagno?

1 A I'm aware from being told that, yeah,
2 yeah, yes.

3 Q Sitting here right now, are you aware that
4 we're here about a car that's owned by Rich
5 Calvagno, namely a 2019 Dodge Charger?

6 A Yes.

7 Q I'm going to ask you some questions about that
8 2019 Dodge Charger, your involvement with it,
9 inspecting it; do you understand that?

10 A Yes.

11 Q You said you were a licensed New York State
12 inspector. How did you become licensed?

13 A I got -- I went through a test procedure
14 in the city and they gave me a license and now
15 I do the stickers on the machine.

16 Q When did you become licensed?

17 A It's probably in maybe '02 or '03.

18 Q Over 20 years, is that fair to say?

19 A Yeah, yeah, yeah, yeah.

20 Q Understood.

21 I'm going to show you what's already been
22 marked as Plaintiff's 1. Have you ever seen
23 that cover page to that document before?

24 A Yes.

25 Q How have you seen that?

1 A It's an -- I think I actually went to
2 school, when I went to the school for the
3 class, and I read the manual. You have to
4 look through the manual to know the cars and
5 procedures.

6 Q Is it fair to say that that manual, what's
7 been marked as 1, is the manual for performing
8 a New York State inspection in New York?

9 A Yes, yes.

10 Q Now, I want to just ask you some general
11 questions about how cars get inspected in New
12 York State, okay?

13 A Yeah.

14 Q When a person buys a new car from a
15 dealership, there needs to be a safety
16 inspection before that car leaves the lot; is
17 that correct?

18 A Yes.

19 Q And the first inspection a year after that car
20 leaves the lot, that's also a safety
21 inspection that's done; is that correct?

22 A Yes, yes.

23 Q No emissions inspection is needed on that
24 first year anniversary and no emissions
25 inspection is needed on that initial

1 inspection when the car leaves the lot; is
2 that correct?

3 A Yes.

4 Q In your own words, tell me what's involved in
5 a safety inspection of a vehicle, whether it's
6 when it leaves the lot for the first time or
7 one year thereafter.

8 A Just check the brakes, taillights, make
9 sure the wipers work, make sure the windows
10 are not cracked, make sure the mirrors are all --
11 you know, everything has to work, the lights
12 and everything, no lights on the dash or
13 anything and should be good.

14 Q Is one of the things included in the safety
15 inspection to make sure there's no tint on the
16 windows?

17 A Oh, yeah, tint, too, yeah.

18 Q And does New York State require you to use a
19 tint meter if there's tint on the windows?

20 A Yes, yes, you're supposed to check.

21 Q Would you agree that as part of a safety
22 inspection, there's no inspection of the
23 exhaust system?

24 A No, there is no, yeah.

25 Q There is none, right?

1 A No, no.

2 Q Now, after an inspection, safety inspection is
3 done, let's just stay with the safety
4 inspection for right now, you enter
5 information into the New York VIP program; is
6 that correct?

7 A Yes.

8 Q And upon a pass or a fail, a report is
9 generated from that New York VIP program; is
10 that correct?

11 A Yes.

12 Q And what I'm showing you right now, which has
13 been marked as Plaintiffs' 2, is a redacted
14 copy. There's no actual car information or
15 service center information on it, but it's the
16 general form of what's generated after an
17 inspection is completed; is that correct?

18 A Yes.

19 Q Now, after the one-year anniversary that the
20 car leaves the lot, the second-year inspection
21 needs to not only be a safety inspection but
22 also an emissions inspection; is that correct?

23 A Yeah.

24 Q Now, when we talk about an emissions
25 inspection in New York State, that largely

1 involves connecting the vehicle to the
2 diagnostic port or OBD2; is that correct?

3 A Yes.

4 Q The days of measuring or reading the actual
5 gases coming out of the exhaust pipe are over;
6 is that correct?

7 A Yes.

8 Q Other than connecting the vehicle to OBD2 to
9 read the sensors on the car, the only thing
10 you have to do for an emissions inspection is
11 to make sure there are certain emissions
12 components present on the vehicle; is that
13 correct?

14 A Yes.

15 Q In other words, you have to make sure that
16 there's a catalytic converter there --

17 A Yeah.

18 Q -- is that correct?

19 A Yes. You are supposed to check the car
20 before you even get to that point to make sure
21 its safe and can pass.

22 Q So when you do a New York State inspection
23 that comprises both a safety inspection and an
24 emissions inspection, you do the safety
25 inspection first; is that correct?

1 A Yes.

2 Q And as part of a safety inspection, you look
3 over the car to make sure there's nothing out
4 of place or not safe; is that right?

5 A Yes, yes.

6 Q Okay.

7 And then you connect the car to OBD2 to do
8 the emissions test; is that correct?

9 A Yes.

10 Q And if a check engine light is on, the
11 emissions check will almost invariably fail;
12 is that right?

13 A Yes, yes.

14 Q That's because one of the emissions sensors on
15 the vehicle is reporting some kind of
16 out-of-range value, usually; is that correct?

17 A Yes.

18 Q There's no sensor -- the rearmost sensor on a
19 car from an emissions standpoint is the rear
20 oxygen sensor, which is after the catalytic
21 converter; is that correct?

22 A Yes.

23 Q There's no sensors in the exhaust or muffler;
24 is that correct?

25 A Yes.

1 Q And when you do a New York State emissions
2 inspection, you don't actually inspect the
3 muffler or the exhaust rear of the catalytic
4 converter; is that correct?

5 A Yes.

6 Q There's no decibel reading that you have to
7 take of the muffler as part of an inspection,
8 right?

9 A No.

10 Q New York State inspection doesn't require the
11 car to be a certain decibel level at all,
12 right?

13 A No, no, not yet.

14 Q Not yet?

15 A Yeah.

16 Q As long as the car doesn't report any
17 emissions problem and all of the emissions
18 components are present, the car passes; is
19 that correct?

20 A Yes.

21 Q So when we talk about terms like stock or
22 aftermarket in the car world, stock means it
23 comes from the dealer or the manufacturer a
24 certain way and aftermarket means it's
25 something that's been added; is that correct?

1 MR. ROSS: Is that a question?

2 MR. INDUSI: Yeah. We can repeat the
3 question.

4 MR. ROSS: If you want to ask what
5 stock is, ask what stock is.

6 MR. INDUSI: I don't have to ask it
7 that way, Cye, with all due respect. I
8 can ask him the questions the way I'm
9 asking and he can say yes, no or I believe
10 stock to mean something else. There's no
11 requirement I ask him an open-ended
12 question like you want me to.

13 Q When we talk about stock, in your
14 understanding of what stock means, it comes
15 from the manufacturer that way; is that --

16 A Yes.

17 Q -- how you understand the word stock?

18 A Yes, yes.

19 Q And aftermarket means somebody added it after
20 it left the manufacturer; is that correct?

21 A Yes.

22 Q Is that your understanding?

23 A Yes.

24 Q And for a New York State inspection, as long
25 as the vehicle passes the safety inspection

1 and passes the emissions inspection, it does
2 not matter whether there's aftermarket parts
3 on the car or not; is that correct?

4 A Yes.

5 Q Now, I want to show you some repair orders,
6 very simple questions. In front of you is
7 Plaintiffs' 3 and yours are actually great
8 because it's page two, so if you flip the page
9 over one time, at the top of the page it
10 should say 902003. Do you see that document?
11 You see that page?

12 A What page?

13 Q It's page two. It says at the top 902003.

14 A Yeah, I see the RO number there.

15 Q Why don't you take a look at this page and
16 then look up and I'll ask you some questions?

17 A I don't have my reading glasses, though.
18 I can't read it.

19 Q Okay.

20 Are you able to see any of the words on
21 the page? I don't want -- there's really no
22 trick questions. My main question is: It
23 says under letter "C Safety NYSI" and then it
24 says your name --

25 A Yeah, I see that.

1 Q -- do you see that?

2 A Yeah, I see it.

3 Q What does that indicate? When looking at this
4 repair order, what does that line item C
5 indicate?

6 A It means I did the inspection on the car.

7 Q And you did a safety inspection on the car,
8 correct?

9 A Yes, yes.

10 Q Not an emissions inspection, right?

11 A Yes.

12 Q Is there a date that that safety inspection
13 was done?

14 A Yes.

15 Q What's that date?

16 A I really -- I really can't see it. March --
17 is it 18? I really can't see it.

18 MR. ROSS: If you can't read it, tell
19 the gentleman you can't read it.

20 A I can't see it without my glasses. I
21 didn't bring them.

22 Q The other line items on this page, are you
23 able to see them? Like, for instance, it says
24 "clean and fill with gas."

25 MR. CUOMO: Would it help if I bring it

1 up on a laptop and maybe expand it for
2 you; would that be better for you?

3 THE WITNESS: Yeah. I'd be able to see
4 it.

5 MR. CUOMO: You would be able to see
6 it?

7 THE WITNESS: Yeah. I'd be able to
8 see more of this.

9 MR. CUOMO: You will have to give me a
10 minute or two to get this thing up and
11 going.

12 MR. ROSS: You want to just read it to
13 him?

14 MR. CUOMO: You want to do it that way?

15 MR. INDUSI: I'm happy to, but I want
16 to make sure he can just confirm -- off
17 the record.

18 (Whereupon, a discussion was held
19 off the record.)

20 Q So back on the record, Mr. Valenzano, the
21 particular repair order that you're looking
22 at, 902003, was that the initial repair order
23 that was generated when the car was first
24 purchased in connection with its prep?

25 A Yes.

1 Q Can you tell from looking at that repair order
2 when the repair order was opened?

3 A It was open May '19.

4 Q Was it opened May '19 or was it ready May '19?

5 A That was when it was sold, when it went
6 out.

7 Q Can you tell and from looking at this repair
8 order, are you able to tell the day that you
9 did the safety inspection?

10 A It was April '19.

11 Q Okay.

12 And that's because you would have done it
13 the day --

14 A The 26th.

15 Q -- the day it was opened; is that correct?

16 A Yeah.

17 Q Mr. Valenzano, sitting here today, do you have
18 any independent recollection of performing
19 that safety inspection back in April of 2019?

20 A No. I do a lot of cars.

21 Q Totally get it.

22 If you flip now on this -- flip one page
23 and then flip another page, this should say
24 951386 at the top. Do you see that?

25 A Yes.

1 Q And you can pick this up and put it as close
2 to you or as far away as possible to help you.

3 What happened to have happened on May 8th
4 of 2020 in connection with this vehicle?

5 A It had an inspection done.

6 Q And does this repair order indicate whether it
7 was a safety inspection or an emissions
8 inspection?

9 A It's a safety.

10 Q And does that repair order indicate who
11 performed that safety inspection?

12 A Does have a number, yeah -- does it have a
13 number? That's not the employee number there,
14 no, it's not.

15 Q There is not.

16 Do you have, sitting here today, any
17 independent recollection of whether you
18 performed this safety inspection or not?

19 A No, I don't.

20 Q To your knowledge, sitting here today, did you
21 ever perform any emissions inspections on Mr.
22 Calvagno's vehicle?

23 A Not that I remember.

24 Q Understood.

25 These work orders here, do you input

1 pricing onto these work orders?

2 A No.

3 Q Who does?

4 A The company does it. I don't. I don't
5 do it.

6 MR. INDUSI: I have nothing further.

7 (Whereupon, at 11:14 A.M. the
8 Examination of Paul Valenzano was
9 concluded.)

10

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13

PAUL VALENZANO

14

15

16 Subscribed and sworn to before me

17 this ____ day of _____, 2024.

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Notary Public

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I N D E X

WITNESS

EXAMINATION BY

PAGE

Paul Valenzano

Mr. Indusi

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C E R T I F I C A T E

I HEREBY CERTIFY that the Witness was duly
sworn by me, the officer before whom this
Examination Before Trial was taken, and that
the minutes herein are a true and accurate
transcription of the proceedings hereunder.

Rosemarie Tulumello Ellis
ROSEMARIE TULUMELLO (ELLIS)

**** ERRATA SHEET ****

CASE: DIANE C. DESOUSA, et al. vs.

RICHARD A. CALVAGNO II, et al.

DEPOSITION DATE: 1/16/2024

DEPONENT: PAUL VALENZANO

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PAUL VALENZANO

SUBSCRIBED AND SWORN TO BEFORE ME

THIS _____ DAY OF _____, 20____.

(NOTARY PUBLIC)

MY COMMISSION EXPIRES:

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New York Code
Civil Practice Law and Rules
Article 31 Disclosure, Section 3116

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